

PROVINCIAL ASSEMBLY OF THE PUNJAB

Bill No. 10 of 2024

THE PUNJAB ENFORCEMENT AND REGULATION BILL 2024

A

Bill

to provide for establishment of the Punjab Enforcement and Regulatory Authority and to prescribe procedures for efficient and effective implementation & enforcement of special laws throughout Punjab.

It is expedient, in the public interest, to establish overarching provincial enforcement authority and procedures in Punjab; to improve coordination and cooperation between existing regulatory agencies under special laws; to streamline regulatory measures across the Province for better and more effective enforcement of special laws; to designate a lead regulator in regulatory areas where existing enforcement is lacking or prone to jurisdictional overlap; to implement a uniform overarching strategy on regulatory compliance; to establish enforcement stations and empower authorized officers to carry out proceedings and hearings; to pursue administrative and non-judicial enforcement actions for violations under special laws; and, to provide for all matters connected therewith and ancillary thereto.

Be it enacted by the Provincial Assembly of the Punjab as follows:

Chapter I PRELIMINARY

1. Short title, extent, commencement & application.— (1) This Act may be cited as the Punjab Enforcement and Regulation Act 2024.

(2) It shall extend to whole of the Punjab.

(3) It shall come into force on such date and apply to such area as the Government may, by notification in the official Gazette, specify.

2. Definitions.— (1) In this Act:

(a) “Act” means the Punjab Enforcement and Regulation Act 2024;

(b) “Authority” means the Punjab Enforcement and Regulatory Authority established under section 3 of the Act;

(c) “Authorized Officer” means the Authorized Officer appointed under section 10 of the Act;

(d) “Assets” mean and include all movable and immovable properties of a defaulter or his dependents;

(e) “Board” means the District Enforcement and Regulatory Board constituted under section 12 of the Act;

(f) “Chairperson” means the Chairperson of the Authority;

(g) “Sergeant” means a Sergeant appointed by the Authority under the Act;

(h) “Code” means the Code of Criminal Procedure, 1898 (V of 1898);

(i) “Committee” means a committee constituted under the Act;

(j) “Court” means the Court of Session established under the Code and also includes the Court of an Additional Sessions Judge;

(k) “Custodian of the State property” means such officer or such employee of the Government who is responsible for managing, maintaining, and protecting the State property;

(l) “Department” means the Department as defined under the Punjab Government Rules of Business, 2011 and also includes attached

departments, autonomous bodies, local government bodies and the semi-government entities;

- (m) "Director General" means the Director General of the Authority appointed under the Act;
- (n) "District" means a district notified under the Punjab Land Revenue Act, 1967 (XVII of 1967);
- (o) "Employee" includes an officer, staff or any other person recruited by the Authority under section 10 of the Act;
- (p) "Encroachment" includes any interference with or intrusion into the State property, and includes any permanent or temporary structure raised thereon or moveable objects intruded thereupon;
- (q) "Enforcement" includes all acts or processes as may be required for compelling compliance with the provisions of this Act and Scheduled laws;
- (r) "Enforcement costs" means the costs determined by the Hearing Officer on an offender and includes any additional costs incurred by the Enforcement Station to restore the violation;
- (s) "Enforcement Officer" means an Enforcement Officer appointed under the Act;
- (t) "EPO" means the Emergency Prohibition Order issued under the Act;
- (u) "Enforcement Station" means any place or premises declared by the Government to be the Enforcement Station at the sub-division level under the Act;
- (v) "Fund" means the Punjab Enforcement and Regulatory Authority Fund established under the Act;
- (w) "Government" means Government of the Punjab;
- (x) "Grievance Redressal Commissioner" means any person who may be appointed as the Grievance Redressal Commissioner by the Authority under the Act;
- (y) "Hearing Officer" means the Hearing Officer appointed by the Authority under the Act;
- (z) "Initiating authority" means any officer or forum initiating an inquiry under the Act;
- (aa) "Investigation Officer" means the Investigation Officer appointed by the Authority under the Act;
- (bb) "Illegal Occupier" means any trespasser on the State property, including such lessee or licensee who, after the expiry of period of lease or license, continues to remain in the occupation of the State property or an allottee who after the expiry/cancellation of such allotment, continues to remain in the occupation of the State property;
- (cc) "Magistrate" means a Magistrate empowered under this Act and includes a Magistrate empowered under section 14-A of the Code;
- (dd) "Notices" means notices including any summon or other communication/information required to be served under the Act;
- (ee) "Offence" means any offence or violation under this Act and includes any offence or violation under the Scheduled laws;
- (ff) "Offender" means a person who has committed or against whom there is reasonable belief or suspicion that he has committed a violation or offence under this Act or Scheduled laws;
- (gg) "Penalty" means the punishment or fine awarded to a person as provided under this Act or Scheduled laws;
- (hh) "Person" means a natural person, including partnership, firm, company, association, joint stock association, corporation or other like organization;
- (ii) "Prescribed" means prescribed by the rules or regulations made or framed under this Act;

- (jj) "Prosecutor" means any person appointed as Prosecutor under the Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act 2006 (III of 2006);
 - (kk) "Public Place" means any place, building or conveyance to which the public has or is permitted access, including but not limited to, streets, highways, common areas of school, hospitals and public office buildings;
 - (ll) "Regulations" means the regulations framed under this Act;
 - (mm) "Reference" means a reference made by a Department wherein any violation or offence is reported to the Authority or to the Enforcement Station for enforcement of the Act or the Scheduled laws;
 - (nn) "Requisition" means a requisition made to the District Enforcement and Regulatory Board, wherein support or assistance is requested by one Enforcement Station from other Enforcement Station for the purposes of enforcement of the Act or the Scheduled laws;
 - (oo) "Rules" means the rules made under this Act;
 - (pp) "Selection Panel" means the Selection Panel constituted under the Act;
 - (qq) "Schedule" means the Schedule appended with the Act;
 - (rr) "Scheduled laws" means the laws mentioned in the Schedule;
 - (ss) "Services" includes all services that are required to be provided by the Government in the public interest;
 - (tt) "State property" means the property in the name of or under the control of the Government or Department or any entity owned or controlled by the Government;
 - (uu) "Supplies" includes all supplies that are required to be maintained by the Government in the public interest;
 - (vv) "Sub-division" means a sub-division notified as such under the Punjab Land Revenue Act, 1967 (XVII of 1967);
 - (ww) "Sub Divisional Enforcement Officer" means the Sub Divisional Enforcement Officer appointed under the Act;
 - (xx) "Support Staff" means the staff of the Authority performing the clerical, technical or other ministerial jobs for the maintenance and operations of its offices; and
 - (yy) "Whistle-blower" means the person who, in the public interest, discloses to the Authority an actual or suspected violation or offence for cognizance by the Authority.
- (2) Any expression or word used but not defined in this Act or the rules or regulations made thereunder shall have the same meaning as assigned to it in the Constitution of the Islamic Republic of Pakistan, the Punjab Government Rules of Business 2011, the Code or the Scheduled laws.

Chapter II

ESTABLISHMENT OF PUNJAB ENFORCEMENT & REGULATORY AUTHORITY

3. Establishment of Authority.— (1) The Government shall, by notification in the official Gazette, establish an Authority to be known as the Punjab Enforcement and Regulatory Authority for carrying out the purposes of this Act.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal, with power to enter into contract, acquire or dispose of property, and may, by its name, sue or be sued.

(3) The headquarters of the Authority shall be at Lahore with such regional offices in such other areas, as the Authority may deem appropriate.

4. Composition of Authority.— (1) The Authority shall consist of members and the Chairperson, as follows:

(a) Chief Minister, Punjab

Chairperson

(b)	Chief Secretary, Punjab	Vice Chairperson
(c)	Senior Member, Board of Revenue, Punjab	Member
(d)	Secretary to the Government, Finance Department	Member
(e)	Secretary, Services Wing, Services and General Administration Department	Member
(f)	Secretary, Implementation and Coordination Wing, Services and General Administration Department	Member
(g)	Secretary to the Government, Local Government and Community Development Department	Member
(h)	Secretary to the Government, Public Prosecution Department	Member
(i)	Secretary to the Government, Law and Parliamentary Affairs Department	Member
(j)	Secretary to the Government, Home Department	Member
(k)	Three Members, including one female Member, of the Provincial Assembly of the Punjab to be nominated by the Speaker	Members
(l)	Four Independent Members, including one female member, to be appointed by the Government on the recommendation of the Selection Panel	Members
(m)	Director General.	Member/ Secretary

(2) The Chairperson may delegate his/her authority to the Vice Chairperson for performance of all or any functions under the Act. In the absence of the Chairperson, the Vice Chairperson will chair the meeting.

(3) The appointment of all members shall be notified in the official Gazette.

(4) Notwithstanding anything contained in sub-section (1), the Authority may co-opt in any meeting, the Administrative Secretary of the relevant Department responsible for the enforcement and implementation of the Scheduled laws.

(5) The independent member shall be appointed for a period of three years, but he shall serve during the pleasure of the Government.

(6) The independent member may resign at any time subject to service of one month notice to the Government.

5. Selection Panel.— (1) There shall be a Selection Panel consisting of three person other than serving public servants or elected representatives to be nominated by the Chief Minister for the selection of independent members of the Authority.

(2) The selection of independent members shall be by majority, and the process shall be completed within thirty days of commencement of process of appointment.

(3) The Selection Panel shall invite applications from the public for selection of independent members of the Authority and shall, after interviewing eligible candidates, forward its recommendations to the Government for their appointment as independent members.

(4) The Director General shall provide the secretariat support to the Selection Panel to carry out their official business.

6. Qualification and disqualification of an independent member.– (1) An independent member shall be of impeccable integrity and proven professional competence in the fields of social work, law, administration, education or corporate sectors.

(2) A person shall be disqualified from becoming an independent member of the Authority if he:

- (a) has held any public representative office or has remained a public servant in the six months immediately preceding his appointment as independent member;
- (b) is found suffering from any physical or mental incapacity or illness;
- (c) is declared bankrupt, a loan defaulter or a tax evader;
- (d) holds an office in the service of Pakistan;
- (e) is in the service of any statutory body or any other body which is owned or controlled by the Government or in which the Government has a controlling share or interest;
- (f) has been dismissed, removed or compulsorily retired from the service of Pakistan on the grounds of corruption or any other form of misconduct;
- (g) has been convicted of a criminal offence; or
- (h) has any conflict of interest.

7. Meetings of the Authority.– (1) The Authority shall meet at such time and place and shall observe such procedure with regard to transaction of its business and meetings as may be prescribed and, until so prescribed, as the Authority may determine.

(2) The meetings of the Authority shall be presided over by the Chairperson or, in his absence, by any member nominated by him.

(3) The quorum for a meeting of the Authority shall be one half of the total members.

(4) The Director General, on the direction of the Chairperson, shall call a meeting of the Authority:

Provided that any member of the Authority, not being an independent member, may, for the purposes of any urgent matter, request for calling of a meeting of the Authority which request shall be laid before the Chairperson by the Director General and Chairperson shall pass appropriate direction thereupon.

(5) The decisions of the Authority shall be taken by majority of its members present and voting and, in the event of equality of votes, the Chairperson or, in his absence, member presiding over that meeting, as the case may be, shall have a casting vote.

(6) The Director General shall maintain a complete record of the minutes and decisions of the Authority.

(7) No act, decision, order or proceedings of the Authority or a committee constituted by the Authority shall be invalid merely by reason of any vacancy or defect in the constitution of the Authority.

8. Director General.– (1) The Chief Minister may appoint a Director General who shall be an officer of Basic Pay Scale 19 or above from the Pakistan Administrative Service or Provincial Management Service, in such manner and on such terms and conditions as may be prescribed and, until so prescribed, as the Chief Minister may determine.

(2) The Director General, subject to the general supervision and direction of the Authority, shall be responsible for carrying out the purposes of the Act.

(3) The Director General shall be responsible for performing secretariat functions and providing secretariat support to the Authority.

(4) The Director General shall exercise such powers as are mentioned in the Act or as may be prescribed or delegated to him by the Authority.

9. Committees.— (1) The Authority may constitute such committees as it may deem necessary for carrying out the purposes of this Act, and such committees shall exercise such powers and perform such functions as may be assigned to them by the Authority in such manner and to such extent as may be prescribed.

(2) Subject to sub-section (1), the Chairperson may co-opt any person, other than a member of the Authority, to attend a meeting of the committee.

10. Powers and Functions of the Authority.— (1) Subject to the provisions of this Act and the rules or regulations framed thereunder, the Authority may exercise such powers and take such measures as may be necessary for carrying out the purposes of this Act.

(2) Without prejudice to the generality of the provisions of sub-section (1), the Authority shall:

- (a) oversee, spearhead and monitor the implementation of the policy guidelines issued by the Government for the purposes of this Act;
- (b) appoint Hearing Officer(s) for the purposes of the Act;
- (c) appoint Authorized Officer(s), not below the rank of BPS-18, for the purposes of the Act;
- (d) conduct a situational assessment, systematically gather and analyse relevant data for decision-making and effective planning;
- (e) conduct such inquiry as is required for carrying out the purposes of this Act or Scheduled laws;
- (f) recruit and train the employees for the performance of their duties in such manner and on such terms and conditions as may be prescribed and, until so prescribed, as may be determined by the Government;
- (g) establish roles, jurisdictions and job descriptions of the employees;
- (h) devise the mechanism of performance appraisal of employees;
- (i) take measures to establish and maintain discipline in the employees;
- (j) hire and determine the terms and conditions of engagement of such experts, consultants or advisors as may be required and in such manner as may be prescribed and, until so prescribed, as may be determined by the Government;
- (k) administer the Enforcement Stations;
- (l) provide guidelines to the District Enforcement and Regulatory Boards and Enforcement Stations for carrying out the purposes of this Act;
- (m) supervise, monitor and review the progress and performance of the District Enforcement and Regulatory Boards and Enforcement Stations;
- (n) assign any of its employees to provide assistance to the Enforcement Stations;
- (o) take all necessary measures for implementing the enforcement mechanism provided under the Act, the rules and the regulations as well as the Scheduled laws;
- (p) recommend budget estimates to the Government for the purposes of implementation of the Act;
- (q) delegate any of its powers and functions to the Director General or any Authorized Officer;
- (r) define the pecuniary limitations of the employees to impose fines;

- (s) sanction payment of reward to any person, including any employee, who has made an exceptional effort towards accomplishing the objective of the Act; and
- (t) exercise such other functions and exercise such other powers as may be notified by the Government from time to time for carrying out the purposes of this Act.

11. Employees of the Authority.— (1) The Authority may, on its own or through its Authorized Officer, appoint such officers, staff or other employees, as may be considered necessary for the efficient performance of its functions, in such manner and on such terms and conditions as may be prescribed and, until so prescribed, as may be determined by the Government.

(2) The Authority may, by regulations, provide for efficiency, discipline and accountability of its employees.

(3) Subject to the suitability as prescribed, the Authority may transfer, lend or borrow any of its employees or employee of any other body, agency or department of the Government, on deputation basis as per the policy of the Government.

Chapter III

District Enforcement and Regulatory Board

12. District Enforcement and Regulatory Board.— (1) The Authority may, by an order, constitute the District Enforcement and Regulatory Boards at the district level with following composition:

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| (a) The Deputy Commissioner | Chairperson |
| (b) The Additional Deputy Commissioner
(General) | Secretary |
| (c) The District Heads of the Departments of
Scheduled laws | Members |
| (d) District Public Prosecutor | Member |
| (e) District Attorney | Member |
| (f) Any other Member may be coopted from the
public servants or other experts | Member |

(2) The Board shall be housed at the District Headquarter.

(3) The Board shall meet at such date, time and place and shall observe such procedure with regard to transaction of its business and meetings, as the Authority may determine.

(4) The meetings of the Board shall be presided over by the Chairperson or, in his absence, by any member nominated by him.

(5) The quorum for a meeting of the Board shall be one half of the total members.

(6) The Secretary of Board, on the direction of the Chairperson, shall call a meeting of the Board:

Provided that any member of the Board, for the purposes of any urgent matter, request for calling of a meeting of the Board and such request shall be laid before the Chairperson of the Board who shall pass appropriate order thereupon.

(7) The decisions of the Board shall be taken by majority of the members present and voting and, in the event of equality of votes, the Chairperson or, in his absence, the member presiding over that meeting, as the case may be, shall have a casting vote.

(8) The Secretary shall maintain a complete record of the minutes and decisions of the Board.

(9) No act, decision, order or proceedings of the Board or a committee constituted by the Board shall be invalid merely by reason of any vacancy or defect in the constitution of the Board.

(10) The Secretary shall be responsible for performing secretariat functions and providing secretariat support to the Board.

(11) The Secretary shall exercise such powers as are mentioned in the Act or as may be prescribed or delegated to him by the Board.

13. Committees.— The Board may constitute such committees as may be deemed necessary for carrying out the purposes of this Act, and such committees shall exercise such powers and perform such functions as may be assigned to them by the Board.

14. Powers and functions of Board.— (1) Subject to the provisions of this Act and any rule or regulation framed thereunder, the Board may exercise such powers and take such measures as may be necessary for carrying out the purposes of this Act.

(2) Without prejudice to the generality of the provisions of sub-section (1), the Board shall:

- (a) oversee, spearhead and monitor the implementation of the guidelines issued by Authority under this Act;
- (b) supervise, monitor and review the progress and performance of the Enforcement Stations;
- (c) conduct a situational assessment, systematically gather and analyse relevant data for decision-making and effective planning;
- (d) take all necessary measures for implementing the enforcement mechanism provided under the Act, the rules and the regulations as well as Scheduled laws;
- (e) recommend budget estimates to the Authority for the purposes of implementation of the Act;
- (f) seek reports from concerned quarter for data analysis and better decision making;
- (g) propose or sanction, as may be prescribed, payment of reward to any person, including any officer, employee and Whistle-blower, who has made an exceptional effort towards accomplishing the objective of the Act;
- (h) such other functions and exercise such other powers as may be assigned to it by the Authority from time to time, for carrying out the purposes of this Act.

(3) The Chairperson of the board, subject to the general supervision and direction of the Authority, shall be responsible for carrying out the purposes of the Act and may,

- a. monitor and ensure the implementation of the Act at the district level;
- b. conduct performance reviews of the Enforcement stations and its employees;
- c. seek reports and record from the enforcement stations;
- d. initiate and conduct such inquiry by himself or through any of the officer(s) as may be required for carrying out the purposes of this Act or Scheduled laws;
- e. on a requisition, assign any of its employees to the Enforcement Station to provide assistance;
- f. redressal of grievance on the complaint filed by any aggrieved person against the transgressions of any employee of the Authority in the district;
- g. decide the reference sent by Hearing Officer;
- h. administer the Enforcement Stations and employees in the district as may be prescribed;

- i. exercise such powers and perform such functions as may be ancillary to the above and for carrying out the purposes of this Act or Scheduled laws;
- (4) The Chairperson of the board shall exercise such powers as are mentioned in the Act or as may be prescribed or delegated to him by the Authority.

Chapter IV **HEARING OFFICER**

15. Hearing Officer.— (1) The Authority shall appoint or authorize any officer of Pakistan Administrative Service or Provincial Management Service of BPS 17 or above in the sub-division as the Hearing Officer, who shall be competent to hear and decide representations for the purposes of this Act.

(2) Any offender or an aggrieved person may file a representation before the Hearing Officer, within a prescribed period from accruing of cause of action, in the following matters:

- (a) against the fine imposed by Enforcement Officer under this Act or the Scheduled laws; or
- (b) confiscation of articles, carts or vehicles; or
- (c) sealing of any premises; or
- (d) removal of encroachments or public nuisance; or
- (e) any ancillary matters arising out of actions by the Enforcement Officer; or
- (f) any matter as may be prescribed.
- (3) The hearing and representation process shall be such as may be prescribed.
- (4) The powers of the Hearing Officer shall include, but are not limited to:
 - (a) determine whether the offence occurred;
 - (b) determine whether the fine imposed by Enforcement Officer is reasonable and within the limits prescribed under this Act and the Scheduled law;
 - (c) impose additional fine upon failure of representation and to recover the same;
 - (d) refund the fine imposed by Enforcement Officer in case of successful representation, in such manner as may be prescribed;
 - (e) impose fines in case the amount of fine proposed by Enforcement Officer exceeds his pecuniary limits but he has sent a report to Hearing Officer in this regard keeping in view the severity of offence;
 - (f) determine the enforcement costs, rents or other ancillary costs or penalties on the report of Sub Divisional Enforcement Officer as may be prescribed;
 - (g) decide about the disposal of confiscated articles;
 - (h) decide about the sealed premises;
 - (i) decide about auction of confiscated articles/items from the sealed premises as may be prescribed;
 - (j) decide about the matters with regard to encroachments under the Act;
 - (k) decide about the matters with regard to public nuisance and the reasonability of EPO issued by Enforcement Officer;
 - (l) issue Absolute Order in furtherance of an EPO;
 - (m) issue Removal orders under the Act;
 - (n) get securities and bonds with or without sureties as may be prescribed;
 - (o) analyze the requisition sent by Enforcement Station and forward the same to the Board;

- (p) inspect any site, seek reports, summon the attendance of any concerned person and inspection of records;
- (q) issue notices to the offender and concerned persons under this Act or under Scheduled law;
- (r) initiate, conduct and facilitate the inquiries to ascertain the facts regarding an offence or the complaints regarding the employees;
- (s) take into account any mitigating or aggravating factor;
- (t) decide the representation filed by the offender or aggrieved person in such manner and within such time as may be prescribed;
- (u) redress grievance on the complaint filed by any aggrieved person against the transgressions of any employee in the concerned sub-division;
- (v) provide interim relief to the aggrieved person(s), in manner as may be prescribed;
- (w) supervise, monitor and review the progress and performance of Enforcement Station; and
- (x) perform such other functions and exercise such other powers as may be notified or delegated by the Authority or Board from time to time for carrying out the purposes of this Act.

(5) For the purposes of this section, the Hearing Officer shall consider any aggravating or mitigating factors that warrant deviation from the penalty determined by the Enforcement Officer, including but not limited to:

- (a) the gravity and duration of the offence;
- (b) any efforts made by the offender to correct the offence or mitigate its impact;
- (c) the adverse impact of the offence on the public;
- (d) any habitual nature of the offender;
- (e) any instances in which the offender has previously been involved in offences of the same nature; and
- (f) gender and age of the offender
- (g) any other factors that the Hearing Officer may deem fit in the circumstances to achieve justice.

16. Hearing process.— (1) The Government shall make rules for the hearing and representation process.

(2) Without prejudice to the generality of sub-section (1), the rules shall provide for:

- (a) the procedure of hearing;
- (b) deadlines for each step of the hearing process;
- (c) the form and manner of each step of the hearing process;
- (d) consequences of failure to attend the hearing;
- (e) imposition of fine or costs to the persons delaying the hearing process or enforcement;
- (f) rules of evidence and discovery applicable to the hearing process;
- (g) representation of any party through counsel or Prosecutor; and
- (h) mode and manner of decision by the Hearing Officer.

17. Procedure at hearing.— (1) Save as may be expressly provided in the Act, hearings shall be informal in nature, summarily conducted and Qanun-e-Shahadat 1984 shall not apply.

(2) All proceedings may be audio-video recorded by the Hearing Officer to ensure transparency and for purposes of maintaining record of all proceedings.

(3) The Enforcement Officer may attend the hearing but is not required to do so, unless specifically asked to attend by the Hearing Officer.

- (4) Written and oral evidence shall be submitted by any person at the hearing.

18. Recording of evidence.— (1) Any evidence under this Act shall be taken on oath or affirmation, except as may be otherwise provided, be recorded, stored and maintained in the prescribed form.

(2) Any document that is required or authorized to be filed, given or delivered to the Hearing Officer under this Act may, in the prescribed manner, be filed, given or delivered electronically.

Chapter V

ESTABLISHMENT OF ENFORCEMENT STATIONS

19. Enforcement Stations.— (1) The Government shall, by notification, declare any place or premises, not including a police station, generally or specially, to be an Enforcement Station for the purposes of this Act.

(2) There may be one or more Enforcement Stations for each sub-division, including any local area specified by the Government in this behalf, which shall be responsible to the Authority for the discharge of its powers and functions in the enforcement and implementation of the Act.

(3) Each Enforcement Station shall consist of:

- (a) One Sub Divisional Enforcement Officer, not below the rank of BPS-16, as incharge of Enforcement Station;
- (b) Enforcement Officers, not below the rank of BPS-14;
- (c) Investigation Officers, not below the rank of BPS-11;
- (d) Sergeants, not below the rank of BPS-07; and
- (e) Support Staff.

(4) The employees of the Enforcement Stations shall be appointed by the Authority in such manner and on such terms and conditions as may be prescribed and, until so prescribed, as may be determined by the Government.

(5) The Authority may also appoint such additional persons at each Enforcement Station as may be required for carrying out the purposes of this Act, in such manner and on such terms and conditions as may be prescribed.

(6) The employees of Enforcement Stations shall be assigned special uniform and they shall carry with them, at all time, identification cards or badges which shall be worn with their uniform, in such manner as may be prescribed.

(7) Each Enforcement Station shall be provided marked vehicles and motorbikes.

(8) The Authority may frame regulations for supervision and administration of Enforcement Stations and its employees.

20. Powers and Functions of Enforcement Stations.— (1) An Enforcement Station, whether collectively or through any designated member of the Authority, shall perform such functions and exercise such powers as are required for carrying out the purposes of this Act, in such manner as may be prescribed.

(2) Without prejudice to the generality of the provisions of sub-section (1), and in addition to any other power or function conferred by this Act, an Enforcement Station, whether collectively or through any designated member, shall:

- (a) enforce and execute decisions of the Authority within its territorial jurisdiction.
- (b) enforce the provisions of this Act and the Scheduled laws;
- (c) conduct inspections and inquiries;
- (d) register FIRs and conduct investigations;
- (e) arrest and submission of reports;
- (f) issue orders under the Act;
- (g) recover enforcement costs and penalties;

- (h) provide such assistance and support to the Departments as may be required to give effect to this Act or Scheduled laws;
- (i) coordinate, report and liaise with the Board, under whose territorial jurisdiction it falls, for the enforcement of the Act;
- (j) exercise such other powers and perform such other functions as may be delegated to it by the Authority; and
- (k) exercise such powers and perform such functions as may be ancillary to the above.

21. Requisition by Enforcement Station.— (1) Any Enforcement Station may send a requisition to the Secretary of the Board through concerned Hearing Officer, for any reason, it requires support or assistance in the enforcement and implementation of the Act or Scheduled laws, as the case may be.

(2) Upon being satisfied on the requisition that such a necessity reasonably exists, the Secretary of the Board, after getting consent of the Chairperson of Board, shall provide such support or assistance to the requisitioning Enforcement Station.

22. Record Keeping at Enforcement Station.— The Sub Divisional Enforcement Officer shall be responsible for record keeping at the Enforcement Station, in such manner as may be prescribed.

23. Sub Divisional Enforcement Officer.— (1) The Authority shall, by notification, appoint the Sub Divisional Enforcement Officer for every Enforcement Station in the prescribed manner:

(2) The Sub Divisional Enforcement Officer shall possess such qualifications and perform such powers and functions as may be prescribed.

(3) The Sub Divisional Enforcement Officer shall be incharge of the Enforcement Station and shall be responsible for the purposes of enforcement and implementation of this Act.

(4) Without prejudice to the generality of the provisions of sub-section (2), and in addition to any other power or function conferred by this Act, a Sub Divisional Enforcement officer shall:

- (a) enforce and execute decisions of the Authority within his territorial jurisdiction;
- (b) enforce the provisions of this Act and the Scheduled laws;
- (c) facilitate the inspections by Enforcement Officer;
- (d) issue notices or summons to the offender and concerned persons under this Act or the Scheduled laws;
- (e) initiate, conduct and facilitate the inquiries;
- (f) register FIRs and conduct investigations as provided in the Code;
- (g) make arrest;
- (h) submit reports to the Magistrate;
- (i) recover enforcement costs and penalties;
- (j) assign inquiries and investigations to the sub-ordinate officers;
- (k) administer the Enforcement Station and its employees;
- (l) ensure discipline of the Enforcement Station;
- (m) keep record of all registers as may be prescribed;
- (n) issue certified copies of record;
- (o) conduct performance appraisal of Investigation Officers, Enforcement Officers and Sergeants as may be prescribed;
- (p) upon receipt of references from Department, to act and proceed as per provisions of the Act;
- (q) submit requisitions to Board through the Hearing Officer of the sub-division;

- (r) submit reports to the Hearing Officer, Authorized Officer, Board and the Authority as may be required by them;
- (s) assist the Hearing Officer for disposal of the work under the Act and the Scheduled laws;
- (t) act as Drawing and Disbursing Officer (DDO) for the Enforcement Station;
- (u) obey and promptly execute the lawful orders issued by the Hearing Officer;
- (v) perform such functions of an Enforcement Officer in whole of the area of jurisdiction of Enforcement Station, if specifically empowered in this regard, by the Authority;
- (w) exercise such other powers and perform such other functions as may be delegated to it by the Authority; and
- (x) exercise such powers and perform such functions as may be ancillary to the above and as provided through regulations framed by the Authority.

24. Enforcement Officer.— (1) The Authority shall, by notification, appoint as many as Enforcement Officers for each Enforcement Station as deemed appropriate from time to time, who shall perform all field operations for enforcement and implementation under this Act and the Scheduled laws.

(2) The Enforcement Officer shall possess such qualifications and perform such powers and functions as may be prescribed.

(3) Each Enforcement Officer shall be assigned an area of jurisdiction by the Authority or the Authorized Officer of the Authority.

(4) The Enforcement Officer shall have the following powers and functions:

- (a) power to enter, inspect, search and seal any public property, building, place or any premises where he has reason to believe that an offence has occurred or there is apprehension of so happening;
- (b) power to enter, inspect, search and seal any private property, building or place, subject to warrant or order of the Magistrate in whose jurisdiction such premises is situated;
- (c) power to undertake any of the following acts and inspections, subject to recording and reporting the same in the register of inspections:
 - (i) inspection on reasonable suspicion of an offence during routine patrol;
 - (ii) inspection to ascertain compliance of any order issued under the Act;
 - (iii) special inspection on the direction of the Authority or Board, in order to collect any electronic evidence for investigation;
 - (iv) inspection on the reasonable or credible complaint of a Whistle-blower;
 - (v) inspection on reference from the Department;
 - (v) power to stop, inspect and search any vehicle or person;
 - (vi) seizure of any item, goods, article or property that is used in or relevant to prove the commission of a violation/ offence, provided that every such item shall be listed in the register of seized items in the prescribed manner and receipt issued to the offender;
 - (vii) power to arrest an offender as provided under the Act and in the Code;
 - (ix) power to use reasonable force, in case of retaliation or obstruction in performing the functions under the Act;

- (x) evidence collection through electronic means to inquire or investigate, such as CCTV camera recording; video recording; audio recording; photographs; electronic data; caller data records; geo-fencing; mobile device tracking; cyber surveillance and monitoring; digital forensics; and, Artificial Intelligence detection;
- (xi) power to file complaints and get the FIRs registered at the Enforcement Station;
- (xii) exercise any or all powers entrusted to an inspector, designated officer, authorized officer or any other enforcement officer by whatsoever name called under the Scheduled laws;
- (xiii) issue notices or summons to the offender or the concerned persons under this Act or under the Scheduled laws;
- (xiv) power to initiate and conduct the inquiry under the Act;
- (xv) impose fine on the offenders as provided under this Act or the Scheduled laws, subject to prescribed pecuniary limitations;
- (xvi) power to issue EPO under the Act; and
- (xvii) any other power or function conferred or delegated under this Act or Scheduled laws.

(5) All of the powers and functions listed in sub-section (4) shall, in so far as may be practicable, be exercisable in the manner as provided under the Act, rules and regulations made thereunder as well as the Scheduled laws:

Provided that an Enforcement Officer may exercise all powers and functions while wearing a body camera or similar wearable audio-video recording device.

25. Conferment of additional powers on Enforcement Officers.— The Government may, by notification, confer any other power of a police officer, not being the powers mentioned in this Chapter, on an Enforcement Officer or an Investigation Officer under this Act, as may be necessary for the enforcement and implementation of this Act.

26. Duties of Enforcement Officer.— In exercise of the powers and functions under this Act, it shall be the duty of every Enforcement Officer to:

- (a) protect and preserve the life, property, civic rights and liberties of citizens and the community;
- (b) preserve and promote community peace;
- (c) enforce the laws specified in the Schedule, and prevent the commission of violations/offences;
- (d) collect and communicate intelligence affecting civic rights under the Scheduled laws;
- (e) detect and bring offenders to justice;
- (f) apprehend any person whom he is legally authorized to apprehend and for whose apprehension sufficient grounds exist;
- (g) ensure that the information about the arrest of a person is promptly communicated to his family or lawyer;
- (h) obey and promptly execute all lawful orders issued by the Sub Divisional Enforcement Officer; and
- (i) aid and co-operate with other agencies for the prevention of offence:

Provided that all actions taken by the Enforcement Officer, especially involving the arrest of a person, shall be promptly reported to the Hearing Officer through Sub Divisional Enforcement Officer of Enforcement Station for further action in accordance with law.

27. Investigation Officer.— (1) The Authority shall, by notification, appoint as many as Investigation Officers for each Enforcement Station as it may deem appropriate, from time to time.

(2) The Investigation Officer shall possess such qualifications, exercise such powers and perform such functions as may be prescribed.

(3) The Investigation Officer shall have the following powers and functions for the purposes of investigation:

- (a) power to enter, inspect, search and seal any public property, building, place or any premises where he has reason to believe that an offence has occurred or there is apprehension of so happening;
- (b) power to enter, inspect, search and seal any private property, building or place, subject to warrant or order of the Magistrate in whose jurisdiction such premises is situated;
- (c) power to stop, inspect, search and confiscate any vehicle;
- (d) issue notices or summons to the offender and concerned persons under this Act or under Scheduled laws;
- (e) seizure of any item, goods, article or property that is used in or relevant to prove the commission of a violation/offence, provided that every such item shall be listed in the register of seized items in the prescribed manner;
- (f) power to arrest an offender as provided under the Act and in the Code;
- (g) power to search a person or vehicle for articles:
 - (i) on reasonable grounds of suspicion of that person being involved in an offence, or being an accomplice to such offender, or being in possession of any article that may likely be used in the commission of such offence;
 - provided that the article may only be detained if it reasonably appears to be suspicious;
 - provided further that the details of the article and grounds for detention shall be listed in a register in the prescribed form and receipt issued to the person.
- (h) power to use reasonable force, in case of retaliation or obstruction in performing the functions under the Act;
- (i) power to collect evidence through electronic means to inquire or investigate, such as CCTV camera recording; video recording; audio recording; photographs; electronic data; caller data records; geo-fencing; mobile device tracking; cyber surveillance and monitoring; digital forensics; and, Artificial Intelligence detection;
- (j) power to file complaints and get the FIRs registered at the Enforcement Station; and
- (k) conduct inquiries on the direction of initiating authority.

(4) The Enforcement Officer may exercise any other power or function conferred or delegated by the Authority under this Act or Scheduled laws.

(5) All of the powers and functions listed in sub-section (3) and (4) shall, insofar as may be practicable, be exercisable in the manner as provided in the Act, rules and regulations made thereunder, the Code and the Scheduled laws.

28. Sergeants.— (1) The Authority shall, by notification, appoint as many as Sergeants for each Enforcement Station as it may deem appropriate, from time to time.

(2) The Sergeants shall possess such qualifications, exercise such powers and perform such functions as may be prescribed.

(3) The Sergeants shall have the following powers and functions:

- (a) assist the officers and employees of Authority for enforcement of the Act;
- (b) carry weapons as prescribed under the rules; and
- (c) perform any other function as may be prescribed.

29. Enforcement Squad.— (1) There shall be one or more Enforcement Squads in each sub-division, comprising of the Sub Divisional Enforcement Officer, Enforcement Officers, Investigation Officers, Sergeants and such other employees as may be notified by the Authority.

(2) The training and certification of the members of the Squad shall be carried out by the Authority.

30. Administration of the Squad.— (1) The administration of the Squad shall vest in the Authority.

(2) The Director General shall exercise in respect of the Squad such powers as may be prescribed by the Authority through regulations.

(3) The Sub Divisional Enforcement Officer of the Enforcement Station shall exercise in respect of the Squad all powers as prescribed by the Authority through regulations.

(4) The Enforcement Officer and Investigation Officer shall exercise, in respect of the Squad, powers as may be prescribed by the Authority through regulations.

(5) The Sergeants shall exercise all powers and perform duties as prescribed by the Authority through regulations.

31. Uniform and weapons.— The Enforcement Squad shall wear such uniform and carry such weapons and ammunition as may be prescribed.

32. Prosecutor.— (1) Every Enforcement Station shall have a Prosecutor posted from the Public Prosecution Department of the Government.

(2) The Prosecutor shall perform such functions and duties as may be prescribed.

Chapter VI

ARREST

33. Power to Arrest.— (1) The power of arrest by the Sub Divisional Enforcement Officer, Enforcement Officer and Investigation Officer under this Act shall only be exercised if any person:

- (i) is involved in any offence; or
- (ii) against whom a reasonable reference has been sent by the Department; or
- (iii) credible information has been received, or a reasonable suspicion otherwise exists of his having been so involved; or
- (iv) in whose possession anything is found which may reasonably be suspected to be used or linked with the commission of an offence, and who may reasonably be suspected of having committed a violation with reference to such article; or
- (v) has obstructed an Enforcement Officer or any employee of the Authority in the performance of his duty; or
- (vi) has escaped or attempts to escape from lawful custody; or
- (vii) is involved or suspected to be involved in an offence punishable with imprisonment for a term exceeding one year; or
- (viii) was served an Order, but he chose not to abide by it.

(2) The record of the arrests shall be maintained by the Sub Divisional Enforcement Officer of Enforcement Station and reported to the Magistrate as well as the Hearing Officer, in the prescribed manner.

34. Procedure to be followed after arrest.— (1) The Enforcement Officer or the Investigation Officer making an arrest shall, without unnecessary delay, present the person arrested at the Enforcement Station, and bring in the knowledge of the Sub Divisional Enforcement Officer of such arrest and submit a written report for further action.

(2) The Sub Divisional Enforcement Officer shall proceed for registration of FIR immediately and produce such person before the Magistrate within twenty-four hours of arrest through the Investigation Officer.

(3) The Sub Divisional Enforcement Officer of Enforcement Station shall also submit a report to the Hearing Officer as may be prescribed.

35. Application of the Code to arrests under the Act.— The provisions of the Code, in relation to the arrest and detention of a person, search of persons and premises, and investigation of offences shall, in so far as they are not inconsistent with this Act, apply to an arrest, detention, search or investigation made under this Act.

Chapter VII

PUBLIC NUISANCE & ENCROACHMENTS

36. Public nuisance.— Public nuisance means any illegal act or omission which causes violation under the Act or the Schedule laws, or which may cause any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger, or annoyance to persons who may have occasion to use any public right:

Provided that a common nuisance is not excused on the ground that it causes some convenience or advantage.

37. Procedure for removal of public nuisance.— (1) Any person aggrieved by the public nuisance directly or indirectly or perceives to be aggrieved due to such nuisance in near future, may submit a complaint to the Enforcement Officer, Sub Divisional Enforcement Officer, Hearing Officer, Board or the Authority.

(2) Any Department, Whistle-blower or any employee of the Authority may report public nuisance to the Enforcement Officer, Sub Divisional Enforcement Officer, Hearing Officer, Board or the Authority.

38. Action by Enforcement Officer.— (1) On receipt of complaint or information through any manner as provided in section 37, the Enforcement Officer shall visit the site of occurrence of public nuisance, inspect and take the stance of the persons concerned.

(2) If the Enforcement Officer gets convinced that there exists a public nuisance then he shall issue an EPO in such manner as may be prescribed.

(3) The EPO shall consist of the short detail of the public nuisance, reasons of passing an EPO, the direction to the offender creating such nuisance to remove the nuisance within a prescribed time period and manner and the penalty that may be imposed in case of disobedience.

(4) The offender shall either comply with the EPO or prefer a representation before the Hearing Officer, in such manner as may be prescribed.

(5) If the offender neither complies with the EPO nor prefers a representation within the prescribed time period, the Enforcement Officer shall proceed to enforce the EPO and may take any one or more of the following actions against the offender:

(a) remove or cause to be removed the public nuisance, using such means and with such force as may be reasonably necessary, or

- (b) impose and recover the fine as provided under the Act or as may be prescribed, or
- (c) confiscate the articles or the goods, as the case may be, deposit the same in the Enforcement Station along with a seizure memo to the Sub Divisional Enforcement Officer and a copy of receipt to the offender; or
- (d) seal the premises; or
- (e) arrest the offender in default of the fine, repeated offences or creating obstruction for the Enforcement Officer in discharge of his official duties, as may be prescribed, or
- (f) submit a complaint before the Sub Divisional Enforcement Officer and get the FIR registered, or
- (g) submit a report before the Sub Divisional Enforcement Officer for determination of cost of enforcement by Hearing Officer, if any.

(6) The Hearing Officer shall be authorized to dispose of the confiscated articles, decide the fate of sealed premises, and determination of cost of enforcement, in such manner as may be prescribed.

(7) In addition to any other costs or penalties under the Act or the Scheduled laws, the cost of enforcement mentioned shall be determined by the Hearing Officer of the Enforcement Station on the report of Sub Divisional Enforcement Officer that shall be payable by the offender and, if the cost is not paid on demand, the Hearing Officer may cause it to be recovered as arrears of land revenue or cause the materials or goods confiscated by the Enforcement Officer to be sold in auction in such manner as may be prescribed.

(8) If the proceeds of sale are not sufficient to cover the cost mentioned, the balance shall be recoverable as arrears of land revenue, but if such proceeds exceed the cost, the excess shall be paid to the offender.

(9) The Enforcement Officer shall submit daily report of information received and actions taken against the public nuisance matters to the Sub Divisional Enforcement Officer, in such manner as may be prescribed.

39. Action by Hearing Officer.- (1) On receipt of a representation filed by the offender or the complainant, the Hearing Officer shall issue notices to all concerned and conduct the hearing proceedings as provided under the Act or as may be prescribed.

(2) The Hearing Officer may cancel, modify or convert the EPO into an Absolute Order.

(3) The Absolute Order shall contain the detail of the public nuisance, reasons of passing an Absolute Order, the direction to the offender creating such nuisance to remove the nuisance within a prescribed time period and manner and any further penalty that may be imposed on the offender if Absolute Order is not complied with.

(4) On the expiry of time period mentioned in the Absolute Order, if the offender has not removed the public nuisance, the Hearing Officer shall direct the Sub Divisional Enforcement Officer to get the Absolute Order enforced through the Enforcement Officer.

(5) On receipt of such direction, the Enforcement Officer shall enforce the Absolute Order and may, take any one or more actions against the offender:

- (a) remove or cause to be removed the public nuisance, using such means and with such force as may be reasonably necessary; or
- (b) recover the fine as much as imposed by the Hearing Officer; or
- (c) confiscate the articles or the goods, as the case may be, deposit the same in the Enforcement Station along with a seizure memo to the Sub Divisional Enforcement Officer and a copy of receipt to the offender; or
- (d) seal the premises; or

- (e) arrest the offender in default of the fine, repeated offences or creating obstruction for the Enforcement Officer in discharge of his official duties, as may be prescribed; or
- (f) submit a complaint before the Sub Divisional Enforcement Officer and get the FIR registered; or
- (g) submit a report before the Sub Divisional Enforcement Officer for determination of cost of enforcement by Hearing Officer, if any.

(6) The Hearing Officer shall be authorized to dispose of the confiscated articles, decide the fate of sealed premises, and determination of cost of enforcement- in such manner as may be prescribed.

(7) In addition to any other costs or penalties under the Act or the Scheduled laws, the cost of enforcement mentioned shall be determined by the Hearing Officer of the Enforcement Station on the report of Sub Divisional Enforcement Officer that shall be payable by the offender and, if the cost is not paid on demand, the Hearing Officer may cause it to be recovered as arrears of land revenue or cause the materials or goods confiscated by the Enforcement Officer to be sold in auction, in such manner as may be prescribed.

(8) If the proceeds of sale are not sufficient to cover the cost mentioned, the balance shall be recoverable as arrears of land revenue, but if such proceeds exceed the cost, the excess shall be paid to the offender.

40. Existence of any public right.- (1) The person against whom an EPO or Absolute Order has been issued may submit a representation before Hearing Officer and deny the existence of any public right.

(2) The Hearing Officer shall conduct the inquiry in this regard and if he finds reliable evidence in support of the denial then he shall stay the proceedings himself and refer the matter to civil court for determination of existence of such right: however, if the Hearing Officer finds that there is no such evidence in support of denial, he shall proceed further under the Act.

41. Encroachment.- For the purposes of this Act, encroachment includes any interference with or intrusion into the State property, and includes any permanent or temporary structure raised thereon or moveable objects intruded thereupon.

42. Moveable Encroachments.- No person shall make any moveable encroachment on any State property.

43. Procedure for removal.- (1) The Enforcement Officer on his own motion, complaint or reference from Department or custodian of State property, information from Whistle-blower or any direction from Authority, Board, Sub Divisional Enforcement Officer of Enforcement Station or Hearing Officer, in such manner as may be prescribed, shall, inspect the site, take the stance of the concerned persons and if satisfied that the encroachment needs removal under the law then he shall serve notice/Removal Order to the illegal occupant to vacate the State property within specified time period as may be prescribed, through any of the means as provided under this Act.

(2) After, expiry of notice period mentioned in sub-section (1), the Enforcement Officer shall be authorized to take any of the following actions:

- (a) remove or cause to be removed the encroachment using such means and with such force as may be reasonably necessary; or
- (b) impose and recover the fine as provided under the Act or as may be prescribed; or
- (c) confiscate the articles, cart or vehicle as the case may be, deposit the same in the Enforcement Station along with a seizure memo to

the Sub Divisional Enforcement Officer and a copy of receipt to the illegal occupier; or

- (d) seal the premises; or
- (e) arrest the offender in default of the fine, repeated offences or creating obstruction for the Sub Divisional Enforcement Officer in discharge of his official duties, as may be prescribed; or
- (f) submit a complaint before the Sub Divisional Enforcement Officer and get the FIR registered; or
- (g) submit a report before the Sub Divisional Enforcement Officer for determination of cost of enforcement and rents by Hearing Officer, if any.

(3) The Hearing Officer shall be authorized to dispose of the confiscated articles, decide the fate of sealed premises, and determination of cost of enforcement and rents, in such manner as may be prescribed.

(4) In addition to any other costs or penalties under the Act or the Scheduled laws, the cost of enforcement shall be determined by the Hearing Officer of the Enforcement Station on the report of Sub Divisional Enforcement Officer that shall be payable by the offender and, if the cost is not paid on demand, the Hearing Officer may cause it to be recovered as arrears of land revenue or cause the materials or articles used by the offender and confiscated by the Enforcement Officer to be sold through auction, in such manner as may be prescribed.

(5) If the proceeds of sale are not sufficient to cover the cost, the balance shall be recoverable as arrears of land revenue, but if such proceeds exceed the cost, the excess shall be paid to the offender.

(6) The Enforcement Officer shall submit daily report of information received and actions taken against the moveable encroachments to the Sub Divisional Enforcement Officer.

44. Immoveable Encroachment.– (1) No person shall make any immoveable encroachment on any State property.

45. Procedure for removal.– (1) The Enforcement Officer on his own motion, complaint or reference from Department or custodian of State property, information from Whistle-blower or any direction from Authority, Board, Sub Divisional Enforcement Officer or Hearing Officer, shall inspect the site, take the stance of the concerned persons and if satisfied that the encroachment needs removal under the law then he shall submit a report to the Hearing Officer.

(2) The Hearing Officer shall conduct the hearing as provided under the Act or as may be prescribed.

(3) After the hearing, if Hearing Officer is satisfied that the encroachment needs removal under the law then he shall issue a Removal Order in writing specifying the prescribed time period and the manner in which the encroachment be removed.

(4) The order of the Hearing Officer shall be served upon the illegal occupant as provided under the Act.

(5) On the expiry of the notice period, if encroachment is not removed by the illegal occupant, the Hearing Officer shall direct the Sub Divisional Enforcement Officer to get it removed in such manner as may be prescribed, and upon such direction, the Enforcement Officer shall be authorized to take any of the following actions:

- (a) remove or cause to be removed the encroachment mentioned in sub-section (1), using such means and with such force as may be reasonably necessary; or
- (b) impose and recover the fine as provided under the Act or as may be prescribed; or

- (c) confiscate the articles, goods and the building materials, as the case may be, deposit the same in the Enforcement Station along with a seizure memo to the Sub Divisional Enforcement Officer and a copy of receipt to the illegal occupant; or
- (d) seal the premises; or
- (e) arrest the offender in default of the fine, repeated offences or creating obstruction for the Enforcement Officer in discharge of his official duties, as may be prescribed; or
- (f) submit a complaint before the Sub Divisional Enforcement Officer and get the FIR registered; or
- (g) submit a report before the Sub Divisional Enforcement Officer for determination of cost of enforcement and rents by Hearing Officer if any.

(6) The Hearing Officer shall be authorized to dispose of the confiscated articles, goods or the building material, decide the fate of sealed premises, and determination of cost of enforcement and rents, as may be prescribed.

(7) In addition to any other costs or penalties under the Act or the Scheduled laws, the cost of enforcement and rents shall be determined by the Hearing Officer on the report of Sub Divisional Enforcement Officer that shall be payable by the offender and, if the cost or rents so determined is not paid on demand, the Hearing Officer may cause it to be recovered as arrears of land revenue or cause the materials or articles used by the offender and confiscated by the Enforcement Officer to be sold through auction in such manner as may be prescribed.

(8) If the proceeds of sale are not sufficient to cover the cost mentioned, the balance shall be recoverable as arrears of land revenue, but if such proceeds exceed the cost, the excess shall be paid to the offender.

(9) The Enforcement Officer shall submit daily report of information received and actions taken against the immoveable encroachments to the Sub Divisional Enforcement Officer.

(10) In the matters of public nuisance and moveable encroachments, if the Enforcement Officer is of the view that a hearing of the parties should be conducted before the Hearing Officer then he may send a report to the Hearing Officer who shall conduct hearing as provided and decide.

Chapter VIII

ISSUANCE & DELIVERY OF NOTICES/SUMMONS

46. Application.— The provisions of this Chapter shall be applicable in relation to issuance, delivery and satisfaction of the notices including any summons, orders, decisions or other communication/information required to be served upon any person connected to the offences or proceedings under this Act and Scheduled laws.

47. Delivery.— (1) The notice may be issued and delivered in the following modes:

- (a) Personal service: The officer may serve the notice on the offender, through any employee, subject to receiving given by him. Refusal or failure of the person to sign the acknowledgment of receipt of the notice shall not affect the validity of the notice or subsequent proceedings, and footage from the bodycam shall be sufficient proof of personal service; or
- (b) Service at premises: If the officer is unable to locate the offender for personal service, he may mail the ticket through a courier delivery service:
 - (i) if the offender is the owner of a property where the offence has occurred but is not in possession thereof, the notice shall be sent to the last known address of the offender; or

- (ii) if the offender is the occupying owner, tenant or otherwise in occupation or possession of the property where the offence has occurred, the notice shall be sent to the said property address; or
 - (c) Affixing of notice: If service for any reason is not possible or expedient in the manner set out above, the officer may affix the notice/summon at a conspicuous place through an employee; or
 - (d) Public notice in newspaper: If service for any reason is not possible or expedient in the manner set out above, the officer may cause a public notice to be published in a daily national Urdu newspaper of wide circulation; or
 - (e) Local Proclamation: If the information is of general nature and related to many persons of same locality, or the officer deems it appropriate then a proclamation/ announcement may also be done through a loud speaker in the locality: or
 - (f) Insofar as may be practical, the officer shall endeavour to deliver or cause to be delivered the notice simultaneously in as many modes as reasonably possible.
- (2) Where service is made by the officer or any employee, he shall certify on the duplicate of notice that he served the notice or summons, as the case may be, on the required person.

Chapter IX

SANCTIONS & PENALTIES

48. Sanctions under the Act.— Save as may be expressly provided in the Act, for the purposes of the enforcement of Scheduled laws, only those sanctions may be imposed which are permitted under such relevant laws whose enforcement and regulatory compliance is sought to be achieved under this Act:

Provided that no sanction under this Act shall be imposed save in the manner as may be prescribed.

49. Penalties under the Act.— Save as may be expressly provided in the Act, for the purposes of the enforcement of Scheduled laws, only those penalties may be imposed which are permitted under such relevant laws whose enforcement and regulatory compliance is sought to be achieved under this Act:

Provided that no penalty under this Act shall be imposed save in the manner as may be prescribed.

50. Pecuniary limits for penalties.— The pecuniary jurisdiction for the purposes of imposition of penalties shall apply to all the officers of Authority as may be prescribed.

51. Recovery of costs.— Nothing in the Act shall act as a bar against any determination, imposition, collection and recovery of enforcement costs or other permitted costs under this Act, in such mode and manner as may be prescribed.

Chapter X

PREVENTIVE MEASURES

52. Security and Bonds.— The Hearing Officer on his own motion or on receipt of information in any manner, may proceed under Chapter VIII of the Code and require a person to execute a bond of certain amount or the sureties as provided in the Code or as may be prescribed.

Chapter XI OFFENCES

53. Offences.— Whosoever intentionally or without cause:

- (a) refuses to receive the notices/summons or prevents the service of notices/summons by absconding or averting proclamation or affixation or removal of such affixation;
- (b) disobeys any order issued under the Act, rules or regulations;
- (c) fails to appear in person or by an agent before the concerned officer;
- (d) omits to produce any document or article required to be produced before the concerned officer;
- (e) fails to furnish such information in the manner and at the time as required by the concerned officer or refuses to answer any question put before him by such officer;
- (f) offers resistance to the taking of any property or suspected article by the lawful authority of the concerned officer;
- (g) refuses to provide assistance to the concerned officer as required under this Act;
- (h) obstructs in any other manner in the discharge of functions by the concerned officer;
- (i) encroaches upon State property;
- (j) fails to obey the EPO or Absolute Order issued under the Act within the prescribed time limit;
- (k) attempts to commit or abets the commission of any offence under this Act or the Scheduled laws:

shall be guilty of an offence and, for every conviction of such offence, shall be punishable with imprisonment which may extend up to six months or fine which may extend up to rupees three hundred thousand or both.

54. Offences by companies.— (1) Where an offence under this Act has been committed by a company, such company shall be liable to the punishment of fine, costs or other compensation specified for the offence.

(2) Notwithstanding anything contained in sub-section (1), where it is proved that the offence is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be liable to punishment for the offence.

Explanation.— In this section, “company” means a body corporate and includes a firm or any other association of persons.

55. Personating an officer, employee, etc.— Whosoever pretends to hold any particular post or office as an officer, employee, member under this Act, knowing that he does not hold such office, or falsely personates any other person holding such office, and in such assumed character does or attempts to do any act under colour of such office, shall be liable to be punished under section 170 of the Pakistan Penal Code, 1860 (XLV of 1860).

56. Misuse of authority by an officer, employee, etc.— Any officer or employee responsible for enforcement and regulatory compliance under this Act, who:

- (a) makes excesses under the garb of enforcement;
- (b) enters or searches any premises without lawful authority or reasonable cause, or vexatiously and unnecessarily seizes the property of any person, or vexatiously and unnecessarily detains, searches or arrests any person;
- (c) vexatiously and unnecessarily delays the forwarding to a court or to any other authority to whom he is legally bound to forward any arrested person;
- (d) conducts faulty or defective inspection or investigation;

- (e) makes a statement which is false or misleading in material particulars or uses a false document for the purpose;
- (f) is guilty of any wilful breach or neglect of any provision of law, or of any rule or regulation, or any order or instruction which he is bound to observe or obey;
- (g) is guilty of any dereliction of duty, including but not limited to, insubordination or bribery; or
- (h) engages himself in any manner or participates in any way in any action which has the result of thwarting the enforcement or regulatory compliance sought to be achieved under this Act:

shall be guilty of an offence and, for every conviction of such offence, shall be punishable with imprisonment which may extend up to six months or with fine which may extend up to rupees fifty thousand or with both.

Chapter XII

CONDUCT OF INQUIRY

57. Conduct of Inquiry.- In order to ascertain facts, an inquiry may be conducted as provided below or as prescribed, under this Act or the Scheduled laws:

- (a) Initiating Authority: Authority, Board, Hearing officer, Sub Divisional Enforcement Officer or Enforcement Officer, as the case may be, on his own motion; upon receipt of information from a complainant; a Whistle-blower disclosure; or, on a reference from a Department regarding any offence under this Act or the Scheduled laws, may initiate an inquiry.
- (b) Inquiry Officers: Upon initiation of inquiry, the initiating authority may conduct inquiry itself or through any employee of Authority, except Sergeants and support staff, or any public servant sub-ordinate to the initiating authority may be appointed as inquiry officer for the purposes of that inquiry.
- (c) Procedure to Conduct Inquiry:
 - (i) the inquiry officer may inspect the site, peruse the record, get the statements recorded and take such other measures to ascertain the facts, occurrences, omissions and scenario, as may be prescribed; and
 - (ii) the inquiry officer shall for the purposes of the inquiry, have all the powers of a civil court under the Code of Civil Procedure, 1908 (V of 1908) in relation to summoning and enforcing the attendance of any person, examining him on oath, compelling the production of documents, receiving evidence on affidavit and issuing commission for the examination of witnesses.
- (d) Fate of Inquiry Findings:
 - (i) if the allegations are not proved in the inquiry findings, the initiating authority shall file the inquiry;
 - (ii) if the allegations are proved, the initiating authority shall refer the matter to Sub Divisional Enforcement Officer with a recommendation for further proceedings to impose the proposed penalty as provided under this Act and Scheduled laws; and
 - (iii) the initiating authority if not satisfied with the inquiry findings, may order a de-novo inquiry through any other inquiry officer.
- (e) Time for Inquiry Proceedings: The initiating authority shall fix a time period as may be prescribed within which the inquiry has to be completed.

Chapter XIII

JURISDICTION AND PROCEDURE

58. Cognizance of offences.— (1) Notwithstanding anything contained in the Code, all offences punishable under this Act shall be cognizable and non-bailable.

- (2) The Sub Divisional Enforcement Officer may,
- (a) conduct an inquiry himself or through an inquiry officer as provided under this Act or as may be prescribed; or
 - (b) convert the findings of an inquiry held under this Act into an FIR on the recommendations of initiating authority; or
 - (c) register an FIR on the complaint/report of Enforcement Officer; or
 - (d) register an FIR directly if the circumstances are so glaring and the commission of offence is evident.

(3) The Enforcement Officer and Hearing Officer shall be empowered to impose fines and take such other actions under this Act or the Scheduled laws, as may be prescribed.

(4) An offence under this Act shall be triable by a Magistrate appointed under section 14-A of the Code.

59. Bar of jurisdiction.— No court other than the Court shall have jurisdiction to:

- (a) question the validity of any action taken, or intended to be taken, or order made, or anything done or purported to have been done under this Act; and
- (b) entertain any suit, application or other proceeding, or grant any injunction or stay or otherwise make any interim order, in respect of any order made or action taken under the Act, and no such order shall be called in question otherwise than by way of appeal under the Act.

60. Representation.— Any offender or a complainant aggrieved by the action, order or any penalty imposed by an Enforcement Officer may submit a representation before the Hearing Officer as may be prescribed.

61. Appeal.— (1) Any offender who is aggrieved by any decision on a representation filed by him, including any order passed or penalty imposed thereunder by the Hearing Officer, may, within prescribed time period, prefer an appeal to the Court.

(2) An appeal preferred under subsection (1) shall be disposed of by the Court within a prescribed time period.

62. Redressal of grievance.— Any person aggrieved by any alleged misuse of authority by an officer or employee, may, in addition to any other remedy provided in the Act, file a complaint against such officer or employee before the Grievance Redressal Commissioner so appointed by the Authority or, if no such person has been appointed, before concerned Hearing Officer or the Board Chairperson.

Chapter XIV

REGULATORY COORDINATION & ENFORCEMENT

63. Authority to be lead regulator.— (1) Notwithstanding anything contained in any other law, where there exists a regulatory body or agency under Scheduled laws, the Authority shall be deemed to be the “lead regulator” for the purposes of enforcement of violations under this Act, and the regulatory body or agency under such law shall be the “secondary regulator” and shall exercise regulatory and enforcement deference to the lead regulator:

Provided that the Government may, by notification, designate the regulatory body or agency under Scheduled laws to be the lead regulator instead of the Authority, if necessitated due to expediency and public interest:

Provided further that in respect of regulatory powers and functions that vest in the Local Governments, the Authority shall not be deemed to be the lead regulator, unless the concerned Local Government assigns its powers and functions to the extent and on such terms and conditions as may be prescribed or mutually agreed, as the case may be.

Explanation.— Where the Authority is the lead regulator, or where the regulatory body or agency under Scheduled laws has been designated as the lead regulator, as the case may be, the secondary regulator shall not be permitted to take concurrent cognizance of the same violation by the same person.

(2) Without prejudice to sub-section (1), the Authority and a regulatory body or agency under Scheduled laws may enter into a memorandum of understanding or other arrangement for establishing distribution of powers and functions between themselves for better and more effective enforcement with regard to violations.

64. Directives by Government.— The Government may, as and when it considers necessary, issue general or specific policy directives to the Authority, not inconsistent with this Act or any other law for the time being in force, and the Authority shall comply with such directive.

65. Exchange of information.— (1) Any Departments shall promptly share with the Authority all information/documents that the Authority has requested to provide to it for the effective exercise of its powers and performance of its functions under this Act and which information/documents are in possession of such Department, including but not limited to, any action taken by such Department upon that information/documents.

(2) In order to maintain an integrated information system relating to violations, the obligation to exchange the information in sub-section (1) shall be reciprocated by the Authority.

(3) The Authority may, with approval of the Government, enter into any arrangement with anybody or agency that is not under the executive authority of the Government, for the exchange of information and assistance in performance of its powers and functions under this Act.

Chapter XV

ASSISTANCE TO AUTHORITY: WHISTLE-BLOWER DISCLOSURE

66. Assistance to Authority.— (1) All executive authorities and law enforcement agencies of the Government, including the Punjab Police, and every person shall act in aid of the the Authority and render all possible assistance as may be required by the Authority or any of its members, including the incharge of Enforcement Station and Enforcement Squad, discharging their duties under the Act.

67. Whistle-blower disclosure.— (1) Any person making any Whistle-blower disclosure shall make a personal declaration stating that he reasonably believes that the information disclosed by him and the allegations contained therein are true to the best of his knowledge and belief, and is not being disclosed for any personal reasons.

(2) Every Whistle-blower disclosure shall be made in writing or electronic form in such manner and accompanied by such supporting documents or other material as may be prescribed.

(3) No action may be taken on a Whistle-blower disclosure by the Authority if the disclosure does not indicate the identity of the Whistle-blower, or if the identity of the Whistle-blower is found to be incorrect or false on verification.

(4) Upon receipt of any Whistle-blower disclosure, the Hearing Officer shall make an assessment of the information contained in the disclosure and verify the same to the extent as may be practicably possible, in such manner as may be prescribed.

(5) Upon assessment and verification under sub-section (4), if the Hearing Officer is of the view that the Whistle-blower disclosure warrants further probe, inquiry or investigation, he shall refer it to the Sub Divisional Enforcement Officer, not later than twenty-four hours from such assessment and verification, for further action.

68. Reward and punishment.— (1) If any violation or offence is successfully detected by the Authority under the Act as a result of the Whistle-blower disclosure, the person who made the Whistle-blower disclosure shall be paid a reward from its Fund as may be prescribed and a certificate of appreciation by the Authority:

Provided that if more than one person made the Whistle-blower disclosure for the same violation or offence, the reward shall be equitably distributed amongst such persons based on their respective contribution, as determined and deemed fit by the Authority;

Provided further that no reward for any Whistle-blower disclosure shall be permitted if:

- (a) the disclosure is of no value;
- (b) the information in the Whistle-blower disclosure is already within the knowledge of the Authority;
- (c) the information in the Whistle-blower disclosure is a matter of public record; or
- (d) no collection or recovery is made from the Whistle-blower disclosure.

Explanation.— For the purpose of this section, the person making the Whistle-blower disclosure means a natural person.

(2) A person who is found to have made a false, frivolous or vexatious Whistle-blower disclosure shall, subject to being provided an opportunity of being heard, be liable to imprisonment which may extend up to one year or with fine which may extend up to rupees one hundred thousand or with both.

69. Protection of person making Whistle-blower disclosure.— (1) The identity of the person making the Whistle-blower disclosure, not being a false, frivolous or vexatious disclosure, shall not be disclosed even after conclusion of the proceedings, except with the written consent of such person, and any unauthorized disclosure of identity of such person shall attract a fine or a penalty as may be prescribed.

(2) On the direction of the Authority, Board or of his own motion, the Hearing Officer may, in consultation with the person making the Whistle-blower disclosure, take any measure for the protection of such person and for such duration and in such manner as may be prescribed.

70. Public to assist the Authority and its employees.— Every person is bound to assist the Authority and its employees by:

- (a) taking or preventing the escape of any person whom an employee is empowered to arrest and detain;
- (b) preventing a breach of any of the provisions of this Act and Scheduled laws; and
- (c) assisting for enforcement of provisions of the Act and Scheduled laws.

71. Public to give information of offences requiring enforcement by the Authority.— (1) Every person, aware of the commission of or of the intention of any other person to commit any offence under the provisions of this Act or Schedule laws, shall forthwith give information to the nearest Enforcement Station or any employee of the Authority.

(2) Without prejudice to the generality of subsection (1), a person in the area of his residence or work, as the case may be, shall give the following information:

- (a) the permanent or temporary residence of any offender under this Act or Scheduled laws;
- (b) any matter likely to affect the maintenance of supplies and services or the safety of the State property requiring enforcement under this Act or Scheduled laws; and
- (c) any other matter as may be notified by the Authority in this regard.

72. Local Headman and *Chaukidar* to assist.— (1) The local headman, chaukidar and other village officials of each village, *Deh* or *Mauza*, as the case may be, appointed under any law for the time being in force, shall assist the Authority with all means and provide required information.

(2) The local headman and the *chaukidar*, appointed under any law for the time being in force, shall report in writing all offences under the Act or the Scheduled laws to the nearest Enforcement Station at the earliest.

Chapter XVI

COSTS, REWARDS AND REFUNDS

73. Cost of enforcement.— (1) The Enforcement Officer may send a report to Hearing Officer through Sub Divisional Enforcement Officer, stating therein the costs incurred and the reasons for incurring the same, for the enforcement purposes under the Act.

(2) The Sub Divisional Enforcement Officer shall certify the enforcement and the costs incurred.

(3) The Hearing Officer may approve the cost of enforcement after giving an opportunity of hearing to the offender and after perusal of receipts presented before such Hearing Officer.

(4) The cost of enforcement shall be recovered from offender by the Enforcement Officer.

(5) In case, the offender does not pay the cost as determined, the same shall be recovered from auction or sale of confiscated articles or goods.

(6) If the cost remains unsatisfied, the same shall be recovered as arrears of land revenue.

(7) Advance withdrawals of cost of enforcement may be sanctioned by the Hearing Officer to the Enforcement Officer on such request by latter in such manner as may be prescribed.

74. Cost of investigation.— The Investigation Officer may get the investigation costs in such manner as may be prescribed.

75. Reward for the employees.— (1) Any employee of the Authority may be given reward in any form, on his meritorious services or achievements in the line of duty, as may be prescribed.

(2) A compensation amount may also be sanctioned in favor of an employees in case of any loss of his health or life, as may be prescribed.

76. Reward for the Whistle-blower.— On successful enforcement and recovery, the Whistle-blower may be given reward in such manner as may be prescribed.

77. Refunds of fines.— On successful representation or an appeal as the case may be, the Hearing Officer shall refund the fine deposited, in such manner as may be prescribed.

78. Rents of State property.— (1) Besides other costs and penalties, rents shall also be decided by the Hearing Officer against the illegal occupant on the reports submitted

by Sub Divisional Enforcement Officer: provided that rates of such rents shall be applicable as may be prescribed from time to time.

(2) The rents shall be recovered from offender by the Enforcement Officer.

(3) In case, the offender does not pay the rents so determined and imposed, the same shall be recovered from auction or sale of confiscated articles or goods.

(4) If the cost remains unsatisfied then the same shall be recovered as arrears of land revenue.

Chapter XVII

FINANCE, ACCOUNTS AND AUDIT

79. Fund.— (1) There shall be a Fund established for the purposes of this Act, to be known as the “Punjab Enforcement and Regulatory Authority Fund” which shall vest in and be administered and controlled by the Authority.

(2) The Fund shall consist of and be credited with such sums of money received from:

- (a) the Government as may be determined to be required for the purposes of the Act, including payment of rewards to employees, reward for the Whistle-blower, cost of enforcement, refund of fines, any cost of welfare initiative and other ancillary costs as may be permitted by Authority; and
- (b) any receipts as may be permitted by the Government.

(3) The Fund shall be maintained in such form and manner as may be prescribed.

(4) No sum shall be drawn by the Authorized Officer/DDO from the Fund without the prior approval of the Authority.

(5) The Authority may authorize Hearing Officer to withdraw the following and disburse as may be prescribed:

- (a) rewards to employees;
- (b) rewards for the Whistle-blower;
- (c) advance for the cost of enforcement;
- (d) refund of fines in case of successful representation/appeal;
- (e) cost of any permitted welfare initiative by Authority; and
- (f) other ancillary costs as may be permitted by Authority.

(6) In case of deficit revenue of the Authority, the Government shall provide, from its revenue or any other source, such sum as may be necessary for the efficient performance of the functions of the Authority.

80. Accounts.— The Authority shall maintain proper records relating to its financial affairs, including its income and expenditures and its assets and liabilities, in such form and manner as may be prescribed.

81. Budget.— The Authority, through its Authorized Officer, shall prepare, in such manner and at such time as may be prescribed, a budget in respect of the next ensuing financial year showing the estimated receipts and expenditure of the Authority, including the Enforcement Stations, and shall submit the budget to the Government for consideration and approval.

82. Audit.— The accounts of the Authority shall be audited annually by the Auditor General of Pakistan and such qualified auditor or audit agency, appointed with approval of the Government as may be prescribed.

83. Annual report.— (1) The Authority shall, within three months of the close of a financial year, submit to the Government an annual performance report.

(2) The report shall consist of:

- (a) the statement of accounts and audited reports of the Authority;
- (b) a comprehensive statement of the work and activities of the Authority and the Enforcement Stations during the preceding financial year, and its proposed projects and future plans; and
- (c) such other matters as may be prescribed or as the Authority may consider appropriate.

(3) The Authority shall publish the report under sub-section (1) for public information and submit it to the Government, and the Government shall lay it before the Provincial Assembly of the Punjab within ninety days of its receipt.

Chapter XVIII

MISCELLANEOUS

84. Delegation of powers.— The Authority may, by notification, delegate any of its powers or functions to Board or other body, agency or committee of the Government, or any of its members or employee, as it considers appropriate in the interest of effective and efficient regulation under the Act, subject to such conditions and restrictions as may be specified in the order, except the function to:

- (a) frame, amend or repeal the regulations;
- (b) formulate or grant approval for any policy, guideline or procedure in relation to anything covered under this Act;
- (c) approve the annual report, annual budget and audited accounts of the Authority;
- (d) authorize DDO of Fund or budget;
- (e) consider and make any decision on audit reports;
- (f) determine the terms and conditions of service of employees; and
- (g) constitute a committee of Authority, or fill any vacancy in a committee.

85. Public servants.— All persons acting or purporting to act under this Act shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (XLV of 1860).

86. Indemnity.— No suit, prosecution or other legal proceedings shall lie against the Government, the Authority, or any member or employee of the Authority for any damage caused or likely to be caused by any act or omission which is, in good faith, done or intended to be done under this Act, the rules or the regulations.

87. Other laws & overriding effect.— (1) The provisions of this Act shall be read in conjunction with the Schedules laws to the extent provided for under this Act.

(2) Notwithstanding anything to the contrary contained in any other law for the time being in force, whether or not such law is mentioned in the Schedule, the provisions of this Act shall take precedence over the provisions of such other law, to the extent provided in the Act.

(3) In the event of any conflict or inconsistency between provision of this Act and provision of any other law for the time being in force, the provision of this Act shall, to the extent of such conflict or inconsistency, prevail.

(4) Any order made under the Act shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this Act or any instrument having effect by virtue of any enactment other than the Act.

88. Power to make rules.— Subject to the provisions of this Act, the Government may, by notification, make rules for carrying into effect the purposes of this Act.

89. Power to frame regulations.— (1) Subject to the provisions of this Act and the rules, the Authority may frame regulations as may be necessary to carry out the purposes of this Act.

(2) The Government may direct the Authority to modify or omit any regulation which, in its opinion, is repugnant to the provisions of the Act or the rules, or which is otherwise against public policy, and the Authority shall comply with such direction.

90. Power to amend Schedule.— The Government may, by notification in the official Gazette, amend the Schedule.

91. Guidelines.— (1) The Authority may, with prior approval of the Government, issue guidelines, including but not limited to a code of conduct, for the exercise of powers and performance of functions of its members and employees under this Act or the rules or regulations.

(2) Any deviation from such guidelines or code of conduct issued under sub-section (1) shall be referred to the Authority or to such other authority as may be prescribed for the purposes of taking such action in accordance with law.

92. Removal of difficulties.— The Government may, by notification, make such provisions not inconsistent with this Act, as may appear to it to be necessary or expedient for removing any difficulty or giving effect to the provisions of the Act:

Provided that any order made under this section shall, as soon as may be after it is made, be laid before the Provincial Assembly of the Punjab.

SCHEDULE
[see section 2(qq)]

1. The Colonization of Government Lands (Punjab) Act, 1912 (V of 1912).
2. The Punjab Prevention of Hoarding Act, 2020 (XV of 2020).
3. The Punjab Price Control of Essential Commodities Act 2024 (VII of 2024).

STATEMENT OF OBJECTS AND REASONS

The Government intends to establish Punjab Enforcement and Regulatory Authority for effective implementation and enforcement of Special Laws throughout Punjab. At present, there is no appropriate field formation in the districts for execution and handling of General Administrative matters. Due to the absence of a sustainable and effective mechanism in Price Control, Anti-Hoarding measures, Encroachment Removal, Public Nuisance and other serious challenges of similar nature, it is deemed necessary to have a fully operational and dedicated Human Resource to address these pressing issues. Moreover, the provincial government policy matters and special initiatives are implemented in the districts through staff from different departments on adhoc basis. Resultantly, the implementation of policy directions from provincial government, general administration affairs and enforcement of special laws remain a low priority for the departments. To cater the needs, creation of an Authority is proposed, hence this Bill.

MINISTER INCHARGE

Lahore:
11 August 2024

CH AMER HABIB
Secretary General